

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/15/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006115

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: CAPITAL ONE, N.A.	
vs.	
DEFENDANTS: DAVID HURWITZ	

NATURE OF PROCEEDINGS: MOTION – OTHER: REQUEST FOR ADMISSION OF TRUTH OF FACTS TO BE DEEMED ADMITTED

RULING

Plaintiff Capital One, N.A. (“Plaintiff”) filed this discovery motion requesting further responses to interrogatories, and that the court deem admitted the admission requests served on Defendant David Hurwitz (“Defendant”). According to Plaintiff’s declaration, Requests for Admission were served on December 10, 2025. This discovery consisted of eight requests for admission including admissions that Defendant applied for the subject credit account and agreed to its terms and conditions, and that he breached those terms by failing to make minimum payments, which resulted in a balance of \$4,413.89 owed to Plaintiff. Defendant appeared at a case management conference and was referred to the self-help center for assistance. However, he has not responded to the discovery.

As to this motion, a notice of hearing was served on Defendant and again, there was no response. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

In light of the above, the court shall grant Plaintiff’s motion and deem the requests for admission to be admitted.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling 1-669-254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: marin.courts.ca.gov

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/15/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006175

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: ALEXANDER XUE

vs.

DEFENDANT: ANCONA, INC.

NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff Alexander Xue filed a motion for compliance with his Initial Disclosures demand. The parties were referred to the Discovery Facilitator Program and on July 6, 2025, Gerri Green was appointed to serve as the Discovery Facilitator. The court will continue this motion to July 29, 2026 to allow for the Discovery Facilitation to take place. Pursuant to local rule MCR 2.13, the parties must file a Declaration of Non-Resolution if the matter does not resolve.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNgEGafG.1>

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